CONTRACTUAL CLAUSE CARD

Requisite Company Vote / Absence of Majority-of-the-Minority

AUDIT ID: AUDIT-THEB-SQUA-20261018-REV1

SOURCE: SEC Form PREM14A (Section 1); Delaware Chancery Court Precedent (Kahn v. M&F Worldwide Corp.) | OPERATIVE SECTIC VERIFIED **Clause Extraction**

ACCURATE CONTRACTUAL SUMMARY (OPERATIVE RECONSTRUCTION)

> *"Standard MFW-insulated take-private transactions mandate an affirmative non-waivable majority-of-the-minority vote condition to secure the business judgment standard of review at the motion to dismiss stage."*

TRIGGER EVENT

Stockholder vote at Special Meeting of Stockholders.

AMPLIFIER MECHANISM

Precludes unaffiliated Class A public stockholders from exercising a separate class veto; exposes the merger to entire fairness litigation post-closing under Delaware fiduciary duty jurisprudence.

FINANCIAL / LEGAL EXPOSURE

140,242,358 Total Voting Base = 97,617,596 Class A Votes + 42,624,762 Class B Votes. Simple majority requires 70,121,180 votes. Insiders hold ~30% (~42.07M votes), leaving only ~28.05M unaffiliated votes (~28.7% of Class A) required for deal passage.

CONTRACTUAL THRESHOLD

Contractual threshold

RAVEN ADVERSARY STRATEGIC INTERPRETATION

Precludes unaffiliated Class A public stockholders from exercising a separate class veto; exposes the merger to entire fairness litigation post-closing under Delaware fiduciary duty jurisprudence.

UNRESOLVED VARIABLE // INFORMATION GAP

Full contractual execution verification.